

**IN THE COURT OF APPEALS OF
THE STATE OF WASHINGTON
DIVISION I**

ZACKARIAH JEREMIAH BENNETT,
Appellant,

v.

MELVINA CATHERINE MANNING,
Respondent.

No. 870076

King County Superior Court No. 23-2-11352-7

**MOTION FOR RECONSIDERATION AND/OR MODIFICATION OF
COMMISSIONERS' RULINGS**

COMES NOW, Appellant Zackariah Jeremiah Bennett, pro se, and respectfully moves this Court for reconsideration and/or modification of the Commissioners' rulings entered on January 21, 2025, and February 4, 2025, regarding Appellant's indigency motion pursuant to RAP 15.2. In support thereof, Appellant respectfully shows as follows:

I. INTRODUCTION

This Motion arises out of the conflict between the Commissioners' recent rulings and this Court's binding decision in *Bennett v. Manning*, No. 84951-4-I (Apr. 17, 2023). In *Bennett v. Manning*, the three-judge panel clearly held that, under RAP 15.2, after a party establishes indigency, the matter of determining entitlement to public funding must be forwarded to the Washington Supreme Court—not decided by the trial court or this Court. Despite that ruling, the Commissioners in this case issued final determinations on Appellant's indigency and denied public funding without forwarding the matter to the Supreme Court as required by RAP 15.2(c)-(d).

II. FACTUAL BACKGROUND AND PROCEDURAL HISTORY

A. Diligent Compliance with Filing Procedures:

Appellant followed the proper procedures for obtaining a waiver of filing fees and for submitting an indigency motion. On August 14th and 15th, 2024, Appellant engaged in over 11 email communications with the court clerk and the trial court bailiff.

During these communications, it was confirmed that Appellant had properly secured the fee waiver from the Court of Appeals Clerk and that the only remaining issue was the issuance of a ruling on the indigency motion.

B. Lack of Further Communication:

Despite these extensive communications, no further response or update was provided regarding the indigency motion. This inaction left Appellant without any indication that the motion was being considered in light of the established procedure.

C. Disparate Treatment:

Appellant is representing himself without counsel and is indigent. The treatment received—including the procedural hurdles and the subsequent final rulings by the Commissioners—raises a serious concern that Appellant, and by extension other indigent and pro se litigants, may be facing discrimination within the appellate process.

III. ARGUMENT AND LEGAL BASIS FOR RELIEF

A. Precedential Conflict with *Bennett v. Manning* (No. 84951-4-I)

In *Bennett v. Manning*, this Court stated:

“The Supreme Court—not the trial court—will then determine whether the party seeking review is entitled to review partially or wholly at public expense. RAP 15.2(d)... Here, the trial court erred by not determining Bennett’s indigency or entering findings as required by RAP 15.2(c). And to the extent the trial court determined the ultimate issue of whether Bennett was entitled to review at public expense, it also erred by deciding an issue that RAP 15.2(c) expressly reserves for the Supreme Court.”

The Commissioners’ rulings in the present case, however, constitute a final determination on Appellant’s indigency without forwarding the matter to the Supreme Court. This is directly contrary to the controlling precedent and constitutes a reversible error.

B. Lack of Authority to Issue Final Determinations on Public Funding

Under RAP 15.2(c)-(d), once indigency is established, the determination of whether a party is entitled to public funding is exclusively within the purview of the Washington

Supreme Court. By issuing final determinations, the Commissioners overstepped their authority, thereby undermining the procedural protections afforded to Appellant.

C. Discriminatory Impact on Indigent and Pro Se Litigants

The procedural history—documented through extensive communications with court officials—and the failure to provide a timely ruling on Appellant’s properly submitted motion strongly suggest that Appellant’s status as an indigent, pro se litigant may be adversely affecting his access to justice. Such treatment can be perceived as discriminatory, effectively denying Appellant the full procedural rights that have been established by this Court’s prior decisions.

IV. REQUEST FOR RELIEF

For the reasons stated above, Appellant respectfully requests that this Court:

1. **Reconsider and Vacate** the Commissioners’ rulings issued on January 21, 2025, and February 4, 2025.
2. **Modify the Rulings** to ensure compliance with *Bennett v. Manning*, No. 84951-4-I, by directing that the indigency determination be forwarded to the Washington Supreme Court as required by RAP 15.2(d).
3. Recognize and address the potential discriminatory impact that the current procedural handling has on indigent, pro se litigants, thereby safeguarding Appellant’s access to the full benefits of due process.
4. Grant any further relief deemed just and proper.

V. CONCLUSION

In light of the foregoing, Appellant respectfully requests that this Court grant this Motion for Reconsideration and/or Modification, ensuring that the correct procedural process is followed and that Appellant’s rights as an indigent, pro se litigant are fully protected.

RESPECTFULLY SUBMITTED this 12th day of February, 2025.

Zackariah Bennett



Zackariah Jeremiah Bennett

Appellant, Pro Se

17 Old Mountain Rd

Goldendale, WA 98620

zackjbennett@gmail.com

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